

Katragadda Koteswara Rao vs Kotragadda Lakshmi Anusha on 13 September, 2019

Author: C.Praveen Kumar

Bench: C. Praveen Kumar

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HON'BLE THE ACTING CHIEF JUSTICE C. PRAVEEN KUMAR

CIVIL REVISION PETITION No.2642 of 2019

ORDER:

This Civil Revision petition, under Article 227 of the Constitution of India, is filed against the order dated 24.07.2019 passed in I.A.No.150 of 2019 in O.P.No.1665 of 2018, by the XIV Additional District Judge-cum-Additional Family Judge, Vijayawada, wherein, the petition filed by the respondents herein to grant interim maintenance, is allowed in part, directing the petitioner herein to pay interim maintenance at the rate of Rs.5,000/- per month to each of the petitioners 1 and 2.

2. For sake of convenience, hereinafter, the parties, will be referred to, as they were arrayed in the I.A. before the trial Court.

3. The two petitioners, who are the wife and minor daughter of the respondent, filed O.P.No.1665/2018 under Section 18(1)(2)(a)(b)(c)(g) of Hindu Adoption and Maintenance Act, read with Section 7 of Family Courts Act, seeking monthly maintenance of Rs.30,000/- and Rs.20,000/- respectively from the date of filing of the petition with a charge over the petition schedule properties for payment of maintenance. During pendency of O.P., they filed I.A.No.150 of 2019, under Sections 24 and 26 of Hindu Marriage Act, read with Section 7 of Family courts Act, seeking interim maintenance. The said petition was allowed to the extent indicated herein above.

4. It was the case of the petitioners in the said I.A., that the marriage of the first petitioner and respondent took place on 21.05.2017, at which time, Rs.15,00,000/- was given towards Pasupukumkuma in the presence of elders and it was represented that the said amount would be invested in Automobile business carried on by the respondent's family in the name and style of Century Marketing. It was also the case of the petitioners that though there was wide gap in the age between the first petitioner and her husband, wrong date of birth was referred showing given as if he was born on 18.01.1994 among other misguided facts. However, they both lived happily for some time. It was alleged that the gold ornaments presented to the first petitioner at the time of marriage were taken away from her and later it was revealed by her co-sister that the respondent studied upto 7th class only. It was further alleged that the respondent owns house sites at Chinakakani,

Mangalagiri, besides cash of Rs.20,00,000/-, whereas the first petitioner has no source of income to manage her day to day life and also that of her child.

5. The respondent opposed the I.A. by filing counter denying the averments made in the petition stating that, the first petitioner was put on notice of his age and educational qualifications even by the time of betrothal. It was further stated that the first petitioner, who went to her maternal home for delivery, refused to join the respondent, despite mediations, and the first petitioner and her family are interested in getting divorce by taking property and huge amount rather than leading family life. It is further stated that he and his parents are no way concerned with Century Marketing owned by his brother and that the first petitioner, who had accepted his age and educational qualifications, prior to the marriage, wants to make it a ruse to get rid of him by taking premium. It was further stated that he does not own any house site nor does he possess cash, as alleged; he is an unemployed trying to settle in life with the help of his brother, whereas the first petitioner, a post graduate, is working as an Accountant and earning Rs.15,000/- per month, and apart from the same, the same, her family has bank deposits, fetching interest of Rs.15,000/- to Rs.20,000/- per month. Hence pleads that the petition is not maintainable and the same deserves to be dismissed.

6. The trial Court, after hearing the learned counsel for the parties and considering the material on record, by the order impugned, allowed the petition in part, granting interim maintenance of Rs.5,000/- per month, to each of the petitioners, giving rise to filing of the present Civil Revision Petition.

7. The trial court allowed the I.A. in part, on the ground that though the petitioners failed to file documents to prove that the respondent owns immovable properties; cannot escape his liability. To avoid starvation, interim maintenance can be granted to the petitioners.

8. The learned counsel for the respondent mainly submits that when the O.P. was filed under Section 18(1)(2)(a)(b)(c)(g) of Hindu Adoption and Maintenance Act, read with Section 7 of Family Court Act, the question of entertaining the application for grant of interim maintenance under Sections 24 and 26 of Hindu Marriage Act, read with Section 7 of Family Courts Act would not arise. According to him, when the provisions of Hindu Marriage Act do not contemplate granting of interim maintenance, entertaining the application under the said provisions is illegal, improper and incorrect. The learned counsel further argues that a sum of Rs.5,000/-, awarded as interim maintenance to each of the petitioners, is on a high side.

9. The learned counsel for the petitioners disputes the same and submits that the court below, having gone through the material available on record, granted interim maintenance and the same warrants no interference.

10. It is no doubt true, the petition seeking interim maintenance was filed under Sections 24 and 26 of Hindu Marriage Act, read with Section 7 of Family courts Act, in the O.P. filed by the petitioners under Section 18(1)(2)(a)(b)(c)(g) of Hindu Adoption and Maintenance Act, read with Section 7 of Family Court Act.

11. In view of the specific contention raised by the learned counsel for the petitioner herein, regarding competency of the Court to grant interim maintenance without there being any enabling provision, the point that would emerge for determination is:

Whether the Court has jurisdiction to award interim maintenance under the provisions of Hindu Marriage Act, in the O.P. filed under Section 18 of Hindu Adoption and Maintenance Act?

12. S 24 of Hindu Marriage Act speaks about Maintenance pendent lite and expenses of proceedings. It states that in any proceeding under this Act it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable.

13. Though there is no specific provision under the Hindu Adoption and Maintenance Act for grant of interim maintenance, but Section 18 of the Act deals with maintenance to the wife. It states that, subject to the provisions of this section, a Hindu wife, whether married before or after the commencement of this Act, shall be entitled to be maintained by her husband during her lifetime. It also states that a Hindu wife shall be entitled to live separately from her husband without forfeiting her claim to maintenance.

14. In Purusottam Mahakud v. Smt. Annapurna Mahakud¹, it has been held by High Court of Orissa that the right to claim interim maintenance pending proceedings is a substantive right under section 18 of the Hindu Adoptions and Maintenance Act, 1956. Since no form is prescribed to enforce the said right, civil court in exercise of its inherent power can grant interim maintenance. . AIR 1997 Ori 73.

15. Further, in Neelam Malhotra v. Rajinder Malhotra², it has been held by the High Court of Delhi that after considering the status of husband, wife should be awarded maintenance pendente lite. The obligation to maintain the wife remains on her husband even through the wife might be living separately. It is further held that if the said power is only exercised at the conclusion of the proceedings, the wife, at the first instance, be forced to lead a life of starvation, which is not the very intent and spirit of section 18 of the Act. The Court further held that a court empowered to grant a substantive relief is also competent to award it on interim relief as well, even though there is no express provision in the statute to grant it.

16. Having regard to the two judgments referred to above, it is evident that right to claim interim maintenance is a substantive right and when the court is empowered to grant substantiate relief, it is also competent to award interim relief, even though there is no enabling provision in the statute for granting of such relief. Thus, though there is no express provision in The Hindu Adoptions and Maintenance Act, 1956 enabling the Court to grant interim maintenance, since Section 18 of the Act empowers the Court to grant maintenance, a substantive relief, the same can be granted on interim

basis as well.

17. No doubt, the petition seeking interim maintenance was filed under Sections 24 and 26 of Hindu Marriage Act, read with Section 7 of Family courts Act, but not under Section 18 of the Hindu Adoptions and Maintenance Act, . AIR 1994 Del 234, 1956. Merely because the respondents have filed the petition seeking interim maintenance, misquoting the provision of law, the same does not disentitle them from getting the relief, in view of the well settled principle of law that for misquoting a provision of law, the parties should not be disentitled to get relief sought for, provided they are otherwise entitled to the same in the facts and circumstances of the case.

18. If interim maintenance is not granted in a proceedings initiated for granting maintenance, the petitioners would be forced to lead a life of starvation for many a years and even if the maintenance is granted at the conclusion of the proceedings, drawn over a long period of time, it may not serve the purpose at that point of time.

19. In view of the above, the contention raised by the learned counsel for the petitioner regarding competency of the Court in granting interim maintenance in the absence of any enabling provision, holds no substance. Hence, the same is rejected.

20. The impugned order shows that except oral assertions, no material was placed before the trial Court substantiating the earning capacity of the parties. Needless to reiterate the well established principle of law that it is the foremost duty of the husband to maintain wife and children. Except his oral assertions that the petitioner and his parents have nothing to do with the automobile business run by his brother, did not choose to produce any documents to substantiate the same. So also, he did not choose to produce any documents regarding the alleged avocation of his wife as earning Rs.15,000/- per month.

21. Having regard to the above, this Court feels that, the trial Court, after considering the facts and circumstances of the case, granted interim maintenance to the petitioners at the rate of Rs.5,000/- each and, the same warrants no interference in this Civil Revision Petition, filed under Section 227 of the Constitution of India.

22. Having regard to the above, this Civil Revision Petition is dismissed. However, the trial Court is directed to dispose of the O.P. as expeditiously as possible. There shall be no order as to costs.

As a sequel, miscellaneous petitions pending, if any, shall stand closed.

C.PRAVEEN KUMAR, ACJ Date: 13.09.2019 RRR HON'BLE THE
ACTING CHIEF JUSTICE C. PRAVEEN KUMAR CIVIL REVISION PETITION No.2642 of 2019
DATE: 13.09.2019 RRR